

Agenda items

1.1. Welcome & general update

- Project is currently focused on the draft decision with the bills and marketing workstream.

1.2. Competitiveness review

1.2.1. Update

- Working with commissioners on our approach to developing the framework.
- Currently anticipate releasing a single issues paper, currently expected to be released in December.

Questions/comments from stakeholders

Will the ESC be talking to other regulators (such as the ACCC) to try and align the data requests it makes to retailers?

- *We will liaise with other regulators to streamline where possible. We will be consulting on our framework and indicators, and as such have not established what information we will use and the format of the information (i.e. data or policies/procedures etc). So the extent there will be overlap with other regulators' data/information is unknown.*

What information gathering powers will the commission use as part of the review? Would these need to be changed in primary legislation?

- *We will use whatever information gathering powers we have at the time of making the request. We note the ESC already has relatively extensive information gathering powers enshrined in primary legislation – any change to these powers would therefore require legislative change.*

Will the reference price be used in the review?

- *Yes, but how it will be used is not yet settled.*

Any update on the BSO?

- *No update.*

1.3. Bills and marketing

1.3.1. Update on second BIT trial

- Results from the second trial are set out in Appendix B. A full BIT report will be released with the final decision.
- The trial focused on testing variations of the 'control' arm from trial 1, which formed the basis of the draft decision.